

**DISPOSITION OF CHARGES**

PD 468-142A (Rev. 1-06)

CASE NO.

2022-25499

BOOK & PAGE NO.

Page 1 of 1

PERSONNEL ORDER NO.

SPECIFICATIONS AGAINST
RANK/SURNAME

FIRST

M.I.

Inspector Palumbo,

James

COMMAND

Patrol Borough Brooklyn South

SHIELD NO.
00000

TAX REGISTRY NO.

927315

DATE APPOINTED

September 29, 2000

RANK/NAME OF COMPLAINANT

Deputy Chief Prosecutor Suzanne D. O'Hare

COMMAND

CCRB - Administrative Prosecution Unit

DATE OF CHARGES

April 22, 2022

DATE TRIAL COMMENCED

January 25, 2023

DATE TRIAL CONCLUDED

January 25, 2023

TRIAL COMMISSIONER

Honorable Paul M. Gamble

SPECIFICATIONS	DISPOSITION	RECOMMENDED PENALTY	
		PLEA ☐	TRIAL ☒
1. Inspector James Palumbo, on or about June 2, 2020, at approximately 2215, while assigned to PBBS and on duty, in the vicinity of 4th Avenue, between Atlantic Avenue and Pacific Street, Kings County, wrongfully used force, in that he stomped his foot about [REDACTED] upper body multiple times without police necessity.	NOT GUILTY	It is recommended that Respondent be found Not Guilty.	

Reviewed by Deputy Commissioner of Trials

15/Rosemarie Maldonado By JIA

DEPUTY COMMISSIONER

3-14-23

DATE

Police Commissioner's Approval:

☒ Approved☐ Disapproved☐ Other Action (Describe)*Edward A. Cab...*ACTING
POLICE COMMISSIONER

7/6/23

DATE



POLICE DEPARTMENT

March 14, 2023

-----X
In the Matter of the Charges and Specifications :

Case No.

- against - :

2022-25499

Inspector James Palumbo :

Tax Registry No. 927315 :

Patrol Borough Brooklyn South :

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Fredy Kaplan, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent: Louis C. La Pietra, Esq.
La Pietra & Krieger, PC
30 Glenn Street – Suite 105
White Plains, NY 10603

To:

HONORABLE KEECHANT L. SEWELL
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Inspector James Palumbo, on or about June 2, 2020, at approximately 2215 hours, while assigned to PBBS and on duty, in the vicinity of 4th Avenue, between Atlantic Avenue and Pacific Street, Kings County, wrongfully used force, in that he stomped his foot about § 87(2)(b) upper body multiple times without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 25, 2023.

Respondent, through his counsel, entered a plea of Not Guilty. The CCRB entered video evidence and Investigator Benjamin Shelton's testimony to support the charge. Respondent testified on his own behalf and offered video and photographic evidence. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, the Tribunal finds Respondent Not Guilty.

ANALYSIS

The following is a summary of the facts which are not in dispute. On June 2, 2020, at approximately 2200 hours, Respondent performed supervisory duties in the vicinity of 4th Avenue, between Atlantic Avenue and Pacific Street, Kings County. Members of Service from various commands had been mobilized to that area in response to demonstrations related to the death of George Floyd in Minneapolis, Minnesota, on May 25, 2020, while in police custody. At that time, Respondent was in his current position as operations commander for Patrol Borough Brooklyn South.

At about 2215 hours, Respondent observed an individual, whom he later learned was

§ 87(2)(b) on the ground while three uniformed police officers struck him with batons.

Respondent approached the incident and took specific actions, which are in dispute. § 87(2)(b) was later placed under arrest.

The following is a summary of the relevant evidence presented at the trial.

Video Evidence

CCRB called a supervising investigator, Benjamin Shelton, to testify about the steps CCRB took to investigate this case. Shelton stated he was the third investigator to be assigned to this case; at the point of his assignment, Respondent had already been identified as the subject of the investigation (T. 27-28).

The investigative file included videos collected from civilians, body-worn camera video from Captain Hepworth¹, a video used in a New York Times article about the protests², and the NYPD case file for this incident (T. 31-32). CCRB entered into evidence Captain Hepworth's body-worn camera footage, a cell phone video from a civilian witness, § 87(2)(b) and the footage used in the New York Times article⁴ (T. 39; CCRB Exs. 1, 2, and 3).

CCRB Exhibit 3, an edited video obtained from the New York Times, depicts the following:

- 00:00-00:05: § 87(2)(b) is running from three uniformed officers, and he is pushed to the ground, and the three officers strike him multiple times with their batons.
- 00:06-00:07: Respondent runs over to them and uses his left hand to push the officer on his left side away from § 87(2)(b). His left foot lifts and steps onto § 87(2)(b) shoulder area but then comes off § 87(2)(b) body. His right hand is on the shoulder of the officer on the ground on the right.

¹ Captain Hepworth's body-worn camera footage does not show the incident involving § 87(2)(b). Still, it captures enforcement activity in the area of a Modell's store at or near the time of the incident in this case.

² Shelton testified that he interviewed one of the article's authors, who eventually provided the original video in response to his request (T. 52).

³ According to Shelton, he obtained video from the Internal Affairs Bureau, which acquired it from § 87(2)(b).

⁴ Shelton testified that he did not know who captured or filmed the video published in the New York Times article, nor did he know whether or not any specialized equipment was used to edit or alter the video in any way (T. 55).

00:07-00:12: His right hand, holding a baton, is pushing against the shoulder of the officer to his right. His foot returns to the ground, and he steps onto § 87(2)(b) shoulder area.

00:13-00:15: Multiple officers come into the frame and surround § 87(2)(b) who is still on the ground.

CCRB Exhibit 2 captures a different angle of the same incident. In this video, Respondent uses his arm to push away one officer who is standing over § 87(2)(b) and reaches down and uses his other arm to push another officer, who is kneeling over § 87(2)(b) backward (CCRB Ex. 2 at 00:14-00:20). § 87(2)(b) is lying on the ground on his side with his knees toward his chest; it is unclear from the video where his hands are.

Respondent's Exhibit A in evidence is an arrest photograph of § 87(2)(b)

Respondent's Exhibit B is a video recording obtained from the body-worn camera of Police Officer Kolnberger, which depicts the following:

- 22:07:02-22:07:48 § 87(2)(b) is seated in the roadway and appears to be handcuffed. Someone is shining a flashlight on his chest while a police officer reaches over § 87(2)(b) left shoulder and searches a zippered pouch strapped to his chest.
- 22:07:52-22:08:14 The police officer standing before § 87(2)(b) kneels, reaches across § 87(2)(b) torso, and searches his left front pants pocket. The police officer then begins patting down the outside of § 87(2)(b) right pants pocket before the camera angle changes and § 87(2)(b) head obstructs the view of what the kneeling police officer is doing. The police officer comes to his feet and stands in front of § 87(2)(b)
- 22:08:15-22:09:43 Kolnberger's right hand comes into view as it holds § 87(2)(b) right shoulder. The feet and legs of three other police officers standing around § 87(2)(b) come into view. § 87(2)(b) engages in a discussion with one of the police officers, who asks him who organized the demonstration, and § 87(2)(b) responds that he has no idea. § 87(2)(b) then continues the conversation, discussing some proposed law enforcement legislation, before the police officer standing before him walks out of the frame.
- 22:09:43-22:10:47 The police officer standing before § 87(2)(b) walks back into the frame, but only his right lower leg is visible. The camera shifts to the left

and reveals Kolnberger kneeling behind § 87(2)(b) reaching down with his right hand to rest on § 87(2)(b) left shoulder. Kolnberger's left-hand reaches up to adjust the camera, partially obscuring the lens. His hand rests on his leg as he continues to hold § 87(2)(b) right shoulder with his right hand.

22:10:48-22:11:03

Kolnberger and another police officer, kneeling behind § 87(2)(b) assist him in rising to his feet. The camera view shifts to face § 87(2)(b) as he is brought to a seated position on the curb. Kolnberger leans down and searches the inside of the zippered pouch on § 87(2)(b) chest. Kolnberger then stands up, facing several police officers who are standing on the sidewalk facing him.

Shelton defined a "stomp" as "rais[ing] your foot off the ground, or whatever surface that you bring it down upon, and lowering it down on that surface with speed and force" (T. 78).

Shelton testified that in his opinion as an investigator, Respondent's foot made a "stomping motion" on § 87(2)(b) twice: once with his "left foot to sort of step on § 87(2)(b) right shoulder blade area [and] the foot came down on the ground," and second when Respondent "lifted his left foot again and stepped on the side of § 87(2)(b) head" (T. 30, 85).

Shelton was shown Respondent's Exhibit B and agreed that § 87(2)(b) was heard "chuckling" and having a "coherent conversation" with the officers after his arrest (T. 106; Resp. Ex. B). He conceded that the arrest photo in Respondent's Exhibit A did not show any visible marks on § 87(2)(b) face, nor were there visible marks or injuries on his face and neck area seen in the video. § 87(2)(b) was not heard on video complaining about injury to the officers, and he refused medical attention (T. 86-94, 107-10; Resp. A; Resp. Ex. B).

Shelton testified that when he attempted to interview § 87(2)(b) he was informed by § 87(2)(b) attorney that § 87(2)(b) would not be participating in the investigation⁵ (T. 74).

⁵ § 87(2)(b) attorney advised Shelton that § 87(2)(b) was pursuing a civil action arising from this incident (T. 73-74).

Respondent's Testimony

Respondent testified that he was the operations officer for Brooklyn South on June 2, 2020. He explained that his role that evening was to track all the police officers and police resources coming to the Barclays Center throughout the night (T. 154-55).

Respondent testified that he had received information that a burglary, or potential looting, occurred at the Modell's across the street from the Barclays Center. Initially, Respondent was focused on that investigation, as many protestors were attracted to the police activity and attempted to interview the officers. He explained that a "loud commotion" drew his attention away from Modell's to several officers striking § 87(2)(b) as he appeared to resist arrest. Respondent testified that he had a "supervisory obligation to intervene," so he ran toward the police officers (T. 127-28).

He observed § 87(2)(b) was still resisting as he attempted to remove the officers from him. Respondent admitted that he stepped on § 87(2)(b) shoulder area twice: he used his arms to push the officers away from § 87(2)(b) and placed his foot on § 87(2)(b) shoulder to keep him down as he appeared to be attempting to get off the ground. Respondent testified that he "lost [his] balance trying to move those two cops off, and then trying to keep § 87(2)(b) down" (T. 159). He observed § 87(2)(b) lift his head off the ground, and Respondent believed he was still resisting arrest, so he placed his foot on § 87(2)(b) shoulder a second time to keep him down (*Id.*). Respondent explained that, at that moment, he believed "a foot strike would be the most reasonable use of force to control § 87(2)(b) and to intervene and de-escalate the situation" (T. 135). He did not want to end up in a position that would jeopardize his safety if he crouched down or knelt on the ground while the officers were swinging batons, and § 87(2)(b) refused to be handcuffed (*Id.*).

Credibility

Shelton's testimony is credible insofar as it pertains to the investigative steps taken by CCRB. To the extent that he was permitted to offer biased opinions regarding the probative value of the evidence, his testimony was helpful to help the trier of fact in understanding CCRB's theory of the case. Such views, however, are not binding upon this Tribunal.

Respondent's testimony was forthright, concise, and credible. Although he is an interested witness in this proceeding, his in-court testimony was logical and corroborated by the video evidence.

Specification 1: Wrongful Use of Force

CCRB has failed to meet its burden of proof by the credible, relevant evidence that Respondent "stomped" on § 87(2)(b) or otherwise used unlawful force against him.

Respondent credibly testified as to the events of that evening, and there is no physical evidence that would be consistent with a stomp. The CCRB did not provide proof of injury to § 87(2)(b) shoulder or head. In contrast, the arrest photograph in Respondent's Exhibit A depicts § 87(2)(b) face without any injuries. Respondent's Exhibit B, the video of § 87(2)(b) interacting with the police officers after he is handcuffed, does not capture any visible evidence of damage caused by a "stomp" to § 87(2)(b) shoulder or head. In the view of the Tribunal, he appears to be relatively calm, even though he is handcuffed and in the presence of several police officers. § 87(2)(b) does not complain about the use of force, nor does he request medical attention, which would not be surprising for someone who had suffered an injury during an arrest.

I have carefully reviewed the video evidence offered in evidence by the parties. While the videos were each taken from different visual perspectives, they appear generally consistent. Despite Respondent's reference to a "foot strike," the details he provided regarding his actions

with his foot were compatible with stepping on § 87(2)(b) rather than “stomping” on him, as corroborated by CCRB Exhibits 2 and 3, and Respondent’s Exhibit B.

Even though the evidence does not establish that Respondent “stomped” § 87(2)(b) using his foot to restrain him warrants further examination. Under the circumstances presented in this case, Respondent used reasonable force and acted with police necessity. Patrol Guide section 221-02(11) allows an officer to use the “reasonable force necessary to gain control.”

Respondent testified credibly that when his attention was drawn to the incident, he saw three police officers administering baton strikes to a man on the ground, whom he later learned was § 87(2)(b). As a supervisor on the scene, it was Respondent’s duty to intervene and de-escalate the situation so that § 87(2)(b) could be handcuffed without injury (P.G. 221-01, 221-02). Respondent testified that § 87(2)(b) was refusing to be handcuffed, and resisting arrest, as the officers attempted to take him into custody (T. 157).

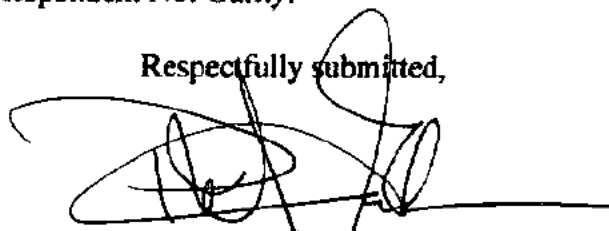
Respondent testified that he stepped on § 87(2)(b) shoulder to keep him on the ground while also trying to push the officers away from § 87(2)(b). He added that he momentarily lost his balance as he moved the officers away while attempting to balance his foot on § 87(2)(b). Respondent then observed § 87(2)(b) lifting his head off the ground and, believing he was still resisting arrest, picked up his foot and placed it on § 87(2)(b) shoulder again to keep him down (T. 159).

Respondent’s movement of pushing the officer on the left of him away is captured in the video evidence (CCRB Ex. 3 at 00:06-00:07; CCRB Ex. 2 at 00:14-00:16). Respondent’s hand is also seen on the shoulder of the officer to the right of him who is kneeling, appearing to hold him back with the baton in his hand (CCRB Ex. 3 at 00:08-00:12; CCRB Ex. 2 at 00:14-00:18). Respondent recalled telling the officers to “get off” and “back up” when he approached (T. 158).

In sum, the evidence established that, rather than engaging in a punitive use of excessive force against a suspect who had already been the recipient of several baton strikes delivered by three police officers, Respondent took action consistent with the Patrol Guide's unambiguous direction that police officers must intervene in any circumstance where another Member of Service is believed to be misusing force against a suspect.

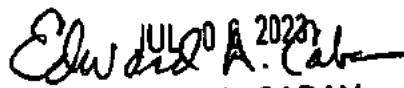
Based upon the foregoing, I find Respondent Not Guilty.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Paul M. Gamble', written over a horizontal line.

Paul M. Gamble
Assistant Deputy Commissioner Trials

APPROVED

A handwritten signature in black ink, appearing to read 'Edward A. Caban', written over a horizontal line.
JUL 20 2022
EDWARD A. CABAN
ACTING POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
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ARVA RICE
INTERIM CHAIR

March 10, 2023

Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Inspector James Palumbo
Disciplinary Case No. 2022-25499

Dear Commissioner Sewell:

The above-referenced case was tried on, January 25, 2023, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Paul M. Gamble, dated February 24, 2023. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Inspector James Palumbo was charged with the following:

1. Inspector James Palumbo, on or about June 2, 2020, at approximately 2215 hours, while assigned to PBBS and on duty, in the vicinity of 4th Avenue, between Atlantic Avenue and Pacific Street, Kings County, wrongfully used force, in that he stomped his foot about § 87(2)(b) upper body multiple times without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

The Court found Respondent Palumbo not guilty of specification One (1).

It is respectfully requested that you reject ADCT Gamble's findings and find the Respondent guilty of Specifications One (1) and accept CCRB's recommended penalty of Termination.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

CCRB introduced into evidence CCRB Exhibit 2, a cell phone video from a civilian witness, § 87(2)(b) and CCRB Exhibit 3, a video utilized by the New York Times in an article about the protests. Each exhibit captures the moments leading up to, and including, the Respondent's wrongful use of unnecessary and excessive force on § 87(2)(b) by means of striking § 87(2)(b) on the right side back of his shoulder with his foot as he laid on the ground in a defensive position, cowering from continuous baton strikes, and posing no threat to anyone's safety. These Exhibits showed in detail that as § 87(2)(b) was continuously being hit with the batons of several police officers, the Respondent raises his left foot, and with both focus and force, stomps on the right side back of § 87(2)(b) shoulder near his head.

CCRB Exhibit 2 shows § 87(2)(b) running from three uniformed police officers and is then pushed to the ground by one of them. As he is pushed to the ground, § 87(2)(b) states in a loud clear voice to these officers, "I'm done, I'm done," clearly indicating to these police officers that he is caught, not resisting them, cooperating, and is not a threat to them or anyone else. In response to § 87(2)(b) statement, the three officers proceed to strike him multiple times with their batons as he laid on the ground, faced down, cowering from the baton strikes. § 87(2)(b) is clearly seen using his arms to cover and protect his head and upper body, in a restrained position, as the police officers continue to strike him with their batons.

The video also shows that as the three officers steadily hold § 87(2)(b) to the ground with their baton strikes as he lays there in a defensive position, cowering from the continuous baton strikes being thrust upon him, the Respondent runs over to them and once there, he moves one of the police officers aside who was striking § 87(2)(b) with a baton, and then stomps on § 87(2)(b) right side back shoulder area, as he laid there in a fetal position with his hands and arms clearly showing and being used to protect his head from the continuous baton strikes (CCRB Exhibit 2, 00:14 – 00:18).

CCRB Exhibit 3 captures a different angle of the incident depicted in CCRB Exhibit 2, and contains a slowed and detailed view of the Respondent's use of his left foot to stomp on the right side back of § 87(2)(b) shoulder near his head (CCRB Exhibit 3, 0.11-0.13). The video also shows that from the time the Respondent arrives to this scene, throughout the time that he is seen first stepping on, then stomping on § 87(2)(b) right side back shoulder area, that one of the three officers was continuously on the ground resting on one knee, with his baton in hand, hovering over and restraining § 87(2)(b) (CCRB Exhibit 3, 00:05- 00:15).

It is clear from both videos that § 87(2)(b) was lying on the ground on his side in a defensive position, with his knees toward his chest, with his arms and hands in perfect view shown covering and protecting his head from the continuous and multiple baton strikes.

It is also clear from the videos that from the moment § 87(2)(b) fell to the ground, stated "I'm done, I'm done," and assumed a defensive position, cowering from the continuous baton strikes, with his arms and hands protecting his head from potential injury, that he was not resisting arrest, and therefore the situation was de-escalated before the Respondent arrived at the scene.

In his testimony, the Respondent testified that § 87(2)(b) was resisting arrest by refusing to put his hands behind his back and lifting his head off the ground (Transcript, 133). He stated

he could not recall where § 87(2)(b) arms were at the time, but only that they were not behind his back as he was lifting his head off the ground (Transcript, 142-143). However, he also testified that § 87(2)(b) continued to resist arrest “*when he was still putting his hands behind his back*” (Transcript, 134), clearly indicating he knew where § 87(2)(b) hands were, and that they were indeed behind his back, and not resisting arrest. The Respondent then clarified during cross-examination that as the three police officers were striking § 87(2)(b) with their batons, he observed § 87(2)(b) moving around and “*His arms are moving around towards his head area*” (Transcript, 144), confirming § 87(2)(b) was using his arms to protect his head from the baton strikes, and not resisting arrest.

RESPONDENT IS GUILTY OF WRONGFUL USE OF FORCE

CCRB disagrees with the tribunal’s finding that the Respondent “used reasonable force and acted with police necessity” when he used his foot to strike § 87(2)(b) (Draft Decision 8):

ARGUMENT #1: The Tribunal’s Finding That Respondent’s Foot Strike Against § 87(2)(b) Was A “Stepping” Rather Than a “Stomping” And Hence Was Reasonable Force Goes Against The Weight Of The Evidence

The Tribunal reasoned that because CCRB did not provide proof of injury evidencing damage to § 87(2)(b) shoulder or head that was caused by a stomp, along with the fact that he *appeared* calm while handcuffed in the presence of several police officers; did not complain about the use of force; and did not request medical attention, it concluded the action taken by the Respondent’s foot was compatible with stepping, rather than stomping, and therefore was a reasonable force.

There was no expert testimony or evidence presented by CCRB or the Respondent during the trial that clearly defined or demonstrated the difference between stepping and stomping. However, CCRB’s only witness, Supervisor Investigator Benjamin Shelton, who utilized the specific term “stomp” in his investigative reports when describing the Respondent’s use of his foot to strike § 87(2)(b) explained stomp to mean “*to raise your foot off the ground, or whatever surface that you bring it down upon, and lowering it down on that surface with speed and force.*” (Transcript, 78). His explanation and reasoning for using the term “stomp” as opposed to any other verbal description was not challenged by either the Respondent or the Tribunal.

As there was no expert testimony presented during the proceeding that could verify what a foot stomp is, or that a foot stomp will always result in a visible injury, and that sans any evidence of injury, there cannot be a stomp, this Tribunal’s decision to ignore Mr. Shelton’s testimony and conclude that the action taken by Respondent was not a stomp, but rather a stepping (even if there was no evidence presented to negate that mere stepping could cause injuries) was an error. Any reasonable, and objective view of CCRB’s Exhibit 3 could only conclude that given the height of the Respondent’s left foot as he raised it over § 87(2)(b) body as he laid on the ground in a defensive position, cowering from the continuous baton strikes, followed by the speed and force of his foot striking § 87(2)(b) right side back shoulder near his head, that his action was not a mere stepping, or even arguably an accidental stepping, but rather an intentional and a ‘focused with force’ stomp onto § 87(2)(b) body. The type of foot strike action that was intended to ensure § 87(2)(b) stayed pinned to the ground, and not the type of foot strike action, like stepping, which is lighter and unintentional. As such, the forced used by the Respondent’s foot strike was excessive, unreasonable, and without police necessity.

ARGUMENT #2: The Tribunal's Finding That Without Proof Of Injury There Is No Evidence of Force Consistent With A Stomp Is Incorrect And A Deviation From The Matrix Guidelines

Before the opening statements in the herein proceeding, both CCRB and counsel for the Respondent discussed a stipulation, and subsequently agreed on the record that § 87(2)(b) did not suffer any injuries as a result of the Respondent's foot strike against him (Transcript, 5), and as such, CCRB was seeking the charges related to Use of Force, specifically, Non-Deadly Force Against Another – Resulting In : No Injury as per the Matrix. CCRB also addressed the issue of there being no injuries being claimed in this case and irrelevant or pertinent to the charges against the Respondent. (Transcript, 175). It is only the act itself- the Respondent's use of his foot to strike § 87(2)(b) coupled with the force used by the Respondent in executing said foot strike – and not any resulting injury, that was being tried, and only evidence related to this action should have been under review and consideration by the Tribunal. Any consideration by the Tribunal regarding the lack of injuries in this case in determining the force used by the Respondent's foot strike is a clear deviation from the Matrix guidelines. It is clear from the Matrix that injury is not a necessary element in order to find the Respondent guilty of the charge of wrongful use of force.

Therefore, the Tribunal's consideration of facts not in evidence to support its decision was not impartial and only served to prejudice CCRB's case.

ARGUMENT #3: The Tribunal's Finding That The Respondent's Use Of His Foot To Restrain § 87(2)(b) Was Reasonable Force And A Police Necessity Is Misguided

It is clear from CCRB Exhibits 2 and 3 that by the time the Respondent reached the scene of this incident, the three police officers who initially chased, pushed to the ground, then used their batons on § 87(2)(b) had the situation already de-escalated. § 87(2)(b) was outnumbered by the police and their batons and submitted to their baton strikes while trying to protect his head area from getting hit. He communicated his surrender to the police as he fell to the ground. He was no longer resisting arrest. As such, there was no need for the Respondent to intervene in an already de-escalated situation.

The Tribunal credited the Respondent's testimony that because he observed § 87(2)(b) lifting his head off the ground as he was being struck by the batons, which indicated to him that § 87(2)(b) was resisting arrest, is the reason he picked up his foot and placed it on § 87(2)(b) shoulder again to keep him down. (Draft Decision, 8). This reasoning is misguided as the evidence shows that § 87(2)(b) while on the ground and cowering to multiple and continuous baton strikes, was surrounded by, outnumbered by, and outsized by the three police officers present, as such, there was no place for him to go. § 87(2)(b) act of lifting up his head as he was being struck by the batons was not an act of resisting the reality of being apprehended, and arrested, but rather an act based on the reality and need to protect his head from potential injury.

The Tribunal then sums up by stating the Respondent took action consistent with the Patrol Guide's unambiguous direction that police officers must intervene in any circumstance when another Member of Service is believed to be misusing force against a suspect. (Draft Decision 9). This unambiguously indicates the following:

- a) The baton strikes against § 87(2)(b) were a misuse of force, punitive and excessive.
- b) That the Respondent had to intervene and de-escalate this excessive and misuse of force against § 87(2)(b) as per the Patrol Guidelines, and
- c) That the Respondent's use of a foot strike on § 87(2)(b) was a reasonable use of force that de-escalated said excessive and misuse of force by the three police officers.

There is nothing in the Patrol Guidelines that states that any Member of Service who witnesses any circumstance where another Member of Service is believed to be misusing force against a suspect must take action, and intervene with a similar, or arguably, greater misuse of force, which is what we have in this case. While the Tribunal acknowledges that the use of the batons against § 87(2)(b) was a misuse of force, punitive and excessive, it is misguided in assuming that the Respondent's use of a foot strike, with force against § 87(2)(b) is a lesser excessive or a lesser misuse of force, or that it can be viewed as an act of de-escalation. Especially when that use of force is near the head or neck area of any suspect, and regardless of injury. The Patrol Guidelines also does not state that use of a foot to strike a suspect is a reasonable or allowable force.

It is apparent from the evidence presented at trial that § 87(2)(b) presence on the ground as he was continuously being hit by batons was not the initial reason the Respondent ran over to the incident. Rather he initially ran over there because he observed the three officers' excessive and misuse of force by means of their batons on someone already laying on the ground. Once there, the Respondent de-escalated the excessive and misuse of force against § 87(2)(b) by pushing off an officer to his left and then leaning on and pushing on an officer to his right, thereby stopping them from swinging their batons any further.

As the situation was de-escalated and § 87(2)(b) laid on the ground, apprehended, but now surrounded by four Members of Service preventing him from fleeing, there was no need or police necessity for the Respondent to strike § 87(2)(b) with his foot, especially with the intentional and impactful force used by the Respondent.

CONCLUSION

For all the aforementioned reasons, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on the charged Specification. Based on the presented arguments above, Inspector Palumbo is Guilty of Specification One (1) and CCRB recommends the aggravated penalty of Termination

Respectfully submitted,

Fredy H. Kaplan

Fredy H. Kaplan

Prosecutor

Administrative Prosecution Unit

Civilian Complaint Review Board

Cc: Louis LaPietra, Esq.